

25VECV07057 25VECV07057

County: los-angeles

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Case Number: 25VECV07057 Hearing Date: August 26, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

STEVE SHORT,

Plaintiff,

vs.

CHRISTINA

DEVELOPMENT CORPORATION, a California company; CREI 4 – PACIFIC, LLC, a

California company; DAVID ALLEN WHITEHEAD, an individual; DOES 1-10,

inclusive,

Defendants.

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CASE NO.: 25VECV07057

ORDER

GRANTING IN PART PLAINTIFF'S MOTIONS TO COMPEL FURTHER DISCOVERY RESPONSES

I.

BACKGROUND

Plaintiff Steve Short

("Plaintiff") alleges Defendants Christina Development Corporation

("Christina"), CREI 4 – Pacific, LLC ("Pacific"), and David Allen Whitehead ("Whitehead")

(collectively, "Defendants") are operating together by allowing Plaintiff to be

repeatedly harassed via phone calls, voice mails, and texts beginning

approximately in March or April of 2022 until most recently December 6, 2025. (See

Second Amended Complaint ("SAC") at 3:4-9.) Plaintiff alleges these

communications are in violation of a settlement agreement of other lawsuits

executed on or around June 29, 2025. (See *id.*, at 3:25-28.)

Plaintiff

moves to compel further responses to his Special Interrogatories, Requests for

Admission, and Requests for Production.

II.

PROCEDURAL

HISTORY

On December

12, 2025, Plaintiff filed a Complaint alleging (1) Civil Harassment, (2)

Intentional Infliction of Emotional Distress, and (3) Violation of Bus. &

Prof. Code Section 17200 et seq.[1]

On March 18,

2026, the Court sustained Defendants' Demurrer with and without leave to amend,

denied Defendant's motion to strike, and granted Plaintiff's motion to compel.

On April 3,

2026, Plaintiff filed his First Amended Complaint alleging (1) Intentional

Infliction of Emotional Distress and (2) Violation of Business and Professions

Code § 17200.

On April 22,

2026, the Court denied Plaintiff's Motion FROGs.

On June 26,

2026, Plaintiff filed the instant discovery Motions.

On July 10, July

13, July 15, July 22, July 24, August 12, and August 13, 2026, Defendants filed

Oppositions.

On July 22,

2026, the Court sustained Defendants' demurrer to Plaintiff's Second and Third

Causes of Action for Intentional Infliction of Emotional Distress and Violation

of Business and Professions Code Section 17200 with leave to amend. The Court denied

Defendants' Motion to Strike as moot.

On August 7,

2026, Plaintiff filed a Second Amended Complaint ("SAC") alleging the same

causes of action as before.

As of August

25, 2026, no reply has been filed.

III.

LEGAL STANDARD

A.

Request

for Production of Documents

In responding

to a request for production of documents, a party must provide one of the

following: (1) a legally adequate statement of compliance; (2) a statement of

inability to comply; or (3) an objection to the particular demand. (See Code

Civ. Proc. § 2031.210(a).) If any

objections are made, they must: (1) “[i]dentify with particularity any document

... falling within any category of item in the demand to which an objection is

being made”; and (2) “[s]et forth clearly the extent of, and the specific

ground for, the objection.”² (Id.

at § 2031.240(b).) A statement that the responding party is unable to comply

with a particular demand “shall affirm that a diligent search and a reasonable

inquiry has been made in an effort to comply with that demand”; “shall also

specify whether the inability to comply is because the particular item or

category has never existed, has been destroyed, has been lost, misplaced, or

stolen, or has never been, or is no longer, in the possession, custody, or

control of the responding party”;² and “shall

set forth the name and address of any natural person or organization known or

believed by that party to have possession, custody, or control of that item or

category of item.” (Id. at § 2031.230.)³

A party who

believes a responding party has served (1) an incomplete statement of

compliance, (2) an inadequate, incomplete, or evasive statement of compliance,

or (3) an unmeritorious objection can move for an order compelling further

responses but must “set forth specific acts showing good cause justifying the

discovery sought by the demand.” (See id. at §§

2031.310(a)-(b)(1).)

B.

Interrogatories

A propounding

party may move for an order compelling further responses to interrogatories if

the responding party produced an evasive or incomplete answer or a meritless or

overly general objection in response to an interrogatory. (See Code Civ.

Proc. § 2030.300(a).) A motion to compel further responses to interrogatories

lies where the party to whom the interrogatories were directed gave responses

deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See *id.* at § 2030.300.)² The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid.³ (See Cal. Rules of Court, rule 3.1345(c).)

However,

where a timely motion to has been filed, “the burden is on the responding party to justify any objection or failure to fully answer the interrogatories.”⁴ (Weil & Brown, Cal. Prac. Guide: Civil Pro.

Before Trial (The Rutter Group 2017) ¶ 8:1179.)⁵ “The ruling

usually is based on consideration of the following factors: [¶] the

relationship of the information sought to the issues framed in the pleadings;

[¶] the likelihood that disclosure will be of practical benefit to the party

seeking discovery; [¶] the burden or expense likely to be encountered by the

responding party in furnishing the information sought.”⁶ (Columbia Broadcasting System, Inc. v. Superior

Court (Rolfe) (1968) 263 Cal.App.2d 12, 19.)

C.

Requests

for Admissions

Under Code of

Civil Procedure § 2033.290, a requesting party may move for further responses

to requests for admissions when responses have been timely served but the requesting party finds the requests evasive or incomplete or objections without merit or too general. No further responses can be ordered, however, to RFAs that have been unqualifiedly denied, even if the facts are unquestionably true.

(See *Holguin v. Superior Court (Hoage)* (1972) 22 Cal.App.3d 812,

820.)

IV.

MEET AND CONFER

Before

bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue

presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2),

2030.300(b), 2033.290(b).) Failure to make such attempt constitutes

“misuse of discovery process”. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable

and good-faith attempt at informal resolution....requires that counsel attempt to

talk the matter over, compare their views, consult, and deliberate.” (Townsend

v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In

evaluating whether a meet and confer was reasonable and in good faith, “[a]n

evaluation of whether, from the perspective of a reasonable person in the

position of the discovering party, additional effort appeared likely to

bear fruit, should also be considered.” (Clement v. Alegre (2009)

177 Cal.App.4th 1277, 1293-94.)

Plaintiff

complied with his meet and confer obligation by telephone. (See, e.g.,

RFPs-Christina Declaration of Steve Short filed June 25, 2026 (“RFPs-Christina

Short Decl.”), ¶ 6.)

V.

ANALYSIS

There are nine

motions before the court, the court will first address the Motions as they

pertain to Christina, then Whitehead, and then Pacific.

A.

Plaintiff’s Motion RFPs – Christina is

Granted in Part.

1.

Nos. 3-5

"All

DOCUMENTS in the PERSONNEL FILE of Defendant Whitehead relating to Defendant Whitehead's job performance." (Sep. Stmt. No. 3.)

"All documents

and communications relating to accusations of any type of harassment made against Defendant Whitehead from any person or entity including employees, tenants, residents, and vendors of Defendant Christina Development whether they are current or former." (Id., Nos. 4-5.)

As to

these requests, Christina asserts the following objections: vague, overbroad, harassing, irrelevant, privacy. (See id., Nos. 3-5.)

Plaintiff

contends further response is required because Plaintiff needs these documents to confirm Whitehead's property management skills and Whitehead's prior harassment. (See id.) Plaintiff contends Whitehead failed to perform his basic duties when he failed to remove Plaintiff's phone number from his company's records at Southern California Edison.

Christina

argues Plaintiff does not show good cause for the wholesale production of Whitehead's personnel records given they are subject to significant privacy protection

and the request is not otherwise limited temporally or by subject matter. (See Def.'s Sep. Stmt. Nos. 3.) Christina also argues Whitehead's performance has no bearing on whether Whitehead engaged in the alleged conduct giving rise to Plaintiff's claims. (See *id.*) Christina argues request Nos. 4-5 are overbroad and unlimited by time or conduct alleged in the Complaint. (See *id.*, Nos. 4-5.) Christina argues although narrowly tailored discovery concerning substantially similar complaints could be appropriate under certain circumstances, Plaintiff has not requested such discovery. (See *id.*)

The

Court finds further response to No. 3 is warranted as Plaintiff states how this request is relevant to his action and Christina does not sufficiently assert a privacy interest. "[P]ersonnel records and employment history are within the scope of the protection provided by the state and federal Constitutions." (*San Diego Trolley, Inc. v. Superior Court* (2001) 87 Cal.App.4th 1083, 1097, overruled on other grounds; *Board of Trustees v. Superior Court* (1981) 119 Cal.App.3d 516, 530.) *Williams v. Superior Court* (2017) 3 Cal.5th 531, 541 and *Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35 describe the applicable test when limiting discovery based on privacy interests. The three-pronged Hill test, applied to

discovery disputes via Williams, proceeds as follows:

The party asserting a privacy right must establish [1] a

legally protected privacy interest, [2] an objectively reasonable expectation

of privacy in the given circumstances, and [3] a threatened intrusion that is

serious. ([Hill,] at pp. 35–37) The party

seeking information may raise in response whatever legitimate and

important countervailing interests disclosure serves, while the party seeking

protection may identify feasible alternatives that serve the same interests or

protective measures that would diminish the loss of privacy. A court

must then balance these competing considerations. (Id. at pp.

37–40)

(Williams,

3 Cal.5th at 552.)

Christina

does not satisfy the second and third prongs of the Hill test. The Court

finds it unlikely that Christina could demonstrate a serious intrusion because Request

No. 3 is narrowed to personnel records concerning Whitehead's job performance.

The Court finds records of Whitehead's job performance could reveal information

relevant to and admissible in this action as these records may show whether

Whitehead's job duties even included removing phone numbers from company

records and whether he complied with these duties, or whether he has received criticism for improperly calling recipients in the past. (See SAC at 3:17.)

However, the Court agrees with Christina that the requests are overbroad as to time. Because this action concerns contacts after June 29, 2025, the Court further limits the scope of the job performance evaluations sought to June 29, 2024, to present.

The Court

finds further response to Nos.4-5 is warranted. These requests are overbroad, and in the interest of judicial efficiency, the Court likewise limits the scope to similar complaints of harassment as alleged in the Complaint and from January 1, 2025, to present. Any nonparties' personally identifying information may be redacted as appropriate.

The Court

GRANTS IN PART Plaintiff's Motion RFPs-Christina Nos. 3-5. No. 3 is limited to job performance evaluations sought to June 29, 2024, to present. Nos. 4-5 are limited to similar complaints of harassment as alleged in the Complaint and from June 29, 2024, to present. The parties are ordered to execute and submit a Stipulated Proposed Protective Order for the Court's approval by September 2, 2026. Christina may produce material responsive to these requests to the Protective Order.

2.

Nos. 6-11

All

communications and documents related to Plaintiff's complaint that phone calls

were being made to Plaintiff's phone number (323-533-0851) by Defendant

Pacific. This includes all aspects of the handling of said complaint, the

discussions about said complaint, and any attempts to resolve said complaint. (See

Sep. Stmt. Nos. 6-7.)

All communications

and documents related to Plaintiff's complaint that he was being harassed or

threatened by a person associated with Defendant Pacific or a person using

Defendant Pacific's phone number. (See *id.*, Nos. 8-9.)

All communications

and documents related to Plaintiff's ongoing complaint Plaintiff was receiving

phone calls or voicemails or text messages from Southern California Edison

regarding properties associated with Defendant Christina Development. (See

id., Nos. 10-11.)

Christina

responds "Overbroad as to both time and scope. Harassing." (Sep. Stmt. Nos.

6-11.) To Nos. 6-7, "Responding party will agree to respond to a more narrowly

tailored request that more clearly defines what Plaintiff is referring to with respect to "Plaintiff Short's ongoing complaint that phone calls were being made to Plaintiff's phone number (323-533-0851) by Defendant Pacific," but Responding Party cannot respond to this interrogatory as drafted." (Id., Nos. 6-7.) To Nos. 8-9, "Responding party will agree to respond to a more narrowly tailored request that more clearly defines what Plaintiff is referring to with respect to 'Plaintiff Short's ongoing complaint that he was being harassed or threatened by a person associated with Defendant Pacific or a person using Defendant Pacific's phone number,' but Responding Party cannot respond to this interrogatory as drafted." (Id., Nos. 8-9.) To Nos. 10-11, "Responding party will agree to respond to a more narrowly tailored request that more clearly defines what Plaintiff is referring to with respect to 'Plaintiff Short's ongoing complaint that Plaintiff was receiving phone calls or voicemails or text messages from Southern California Edison regarding properties associated with Defendant Christina Development,' but Responding Party cannot respond to this interrogatory as drafted." (Id., Nos. 10-11.) "Responding Party further objects that this Request may be seeking documents pertaining to events that occurred prior (to) June 2025, but Plaintiff and Responding Party entered into a settlement agreement in which Plaintiff released Responding Party from any liability for any purported claims

up to June 2025, rendering documents sought from that time period irrelevant

and not reasonably calculated to lead to the discovery of admissible evidence.”

(Id., Nos. 6-11.)

Plaintiff contends

the requested documents will show Defendants received Plaintiff’s complaints

but did not resolve them. (See id., Nos. 6-11.)

Christina

argues it is amenable to responding to a more narrowly tailored request, but Plaintiff’s

Motion still does not clarify what Plaintiff meant by his “ongoing complaint”.

(See Def.’s Sep. Stmt. Nos. 6-11.) Christina also argues Plaintiff

ignores its objection that these requests seek documents potentially relating

to events occurring before June 2025, despite the parties’ Confidential

Settlement Agreement and Release. (See id.)

The Court

finds further response is warranted to Nos. 6-11. Christina is amenable to

responding to a more narrowly tailored request. The requests clearly define “Plaintiff’s

ongoing complaint” as his complaints about receiving phone calls, voicemails,

or text messages from Pacific and Southern California Edison and complaints

about threats. From the SAC’s allegation that this action “only concerns these

illegal contacts after the Settlement Agreement was executed on June 29, 2025”

and Christina points out it is not liable for any claims before the executed settlement agreement, it appears the parties are in agreement as to what the temporal scope of these requests should be. (SAC, at 4:8-9.) Nevertheless, for the sake of clarity, the Court limits the temporal scope of these requests to Plaintiff's complaints made after June 29, 2025.

The Court

GRANTS IN PART Plaintiff's Motion RFPs-Christina Nos. 6-11. The Court limits the scope of these requests to Plaintiff's complaints made after June 29, 2025.

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3.

No. 12

"All

DOCUMENTS relating to the phone bills for the phone number associated with

Defendant Pacific, 424-312-5841 from January 1, 2022 thru January 31, 2026.

These phone bill DOCUMENTS would include the itemized records of outgoing calls." (Sep. Stmt. No. 12.)

Christina

responds that the request is overbroad. Christina further responds, to the

extent Plaintiff is seeking the telephone bills for the telephone number

424-312-5841, it will produce redacted telephone bills. (See id.)

Christina also argues it entered into a settlement agreement with Plaintiff in which Plaintiff released Christina from liability for any purported claims up to June 2025, rendering the majority of the documents sought pursuant to this request irrelevant. (See id.)

Plaintiff

argues the itemized phone bills will prove that the callbox has been used to harass Plaintiff. (See id.)

Christina

argues it has advised Plaintiff it would produce redacted telephone bills. (See Def.'s Sep. Stmt. No. 12.) Christina also contends Plaintiff does not address Defendant's objection that the overwhelming majority of the requested time period predates the parties' June 2025 Confidential Settlement Agreement and Release. (See id.)

The Court

finds further response to No. 12 is warranted. Christina is agreeing to produce redacted phone bills. The Court limits the scope to phone bills from June 29, 2025 to present as "This lawsuit only concerns these illegal contacts after the Settlement Agreement was executed on June 29, 2025." (SAC., at 4:8-9.)

The Court

GRANTS IN PART Plaintiff's Motion RFPs-Christina No. 12 limited to phone bills

from June 29, 2025, to present. In addition, the bills shall be redacted so

that only calls made to Plaintiff's phone number (323-533-0851) shall be

disclosed.

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4.

No. 13

"All

COMMUNICATIONS from any Southern California Edison e-mail address to either of

Plaintiff Short's two former Christina Development e-mail addresses

( & ) from January 1,

2022 thru January 31, 2026." (Sep. Stmt. No. 13.)

Christina

responds "Overbroad...Responding Party further objects that Plaintiff and

Responding Party entered into a settlement agreement in which Plaintiff

released Responding Party from any liability for any purported claims up to

June 2025, rendering any documents sought pursuant to this request during that

timeframe irrelevant..." (Id.)

Plaintiff

argues the requested e-mails are needed to show that Defendants were very much aware that Edison was trying to reach Plaintiff. (See id.)

Christina

argues Plaintiff fails to explain why communications predating the June 2025

Confidential Settlement Agreement and Release remain relevant. (See Def.'s Sep.

Stmt. No. 13.)

The Court

GRANTS Plaintiff's Motion RFPs-Christina No. 13 and limits this request to

emails from June 29, 2025, to present.

In sum, the

Court GRANTS IN PART Plaintiff's Motion-Christina. No. 3 is limited to job

performance evaluations sought to June 29, 2024, to present. Nos. 4-5 are

limited to similar complaints of harassment as alleged in the Complaint and

from June 29, 2024, to present. The Court limits the scope of Nos. 6-11 to

Plaintiff's complaints made after June 29, 2025. No. 12 is limited to phone

bills from June 29, 2025, to present containing calls to Plaintiff's phone

number (323-533-0851). No. 13 is limited to emails from June 29, 2025, to

present.

B.

Plaintiff's Motion RFPs – Whitehead is

Granted.

The Court

incorporates the requests from above as Plaintiff seeks the same requests from

Whitehead.

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1.

Nos. 3-5

Whitehead

responds to the personnel records request, "Objection. Vague. Ambiguous.

Overbroad. Harassing. Irrelevant and not reasonably calculated to lead to the

discovery of admissible evidence." (Sep. Stmt. No. 3.) To Nos. 4-5, Whitehead's

response adds, "Seeks documents that are protected by privacy rights under the

federal and state constitutions." (Id., Nos. 4-5.)

Plaintiff

contends further response is required because Plaintiff needs these documents

to confirm Whitehead's property management skills and Whitehead's prior

harassment. (See id., Nos. 3-5.) Plaintiff contends Whitehead failed to

perform his basic duties when he failed to remove Plaintiff's phone number from

his company's records at Southern California Edison. (See id.)

Whitehead

argues his performance reviews are irrelevant to whether he engaged in the alleged conduct and that Plaintiff ignores Whitehead's privacy objection. (See Def.'s Sep. Stmt. No. 3.)

The Court

notes Whitehead's response to No. 3 does not assert a privacy objection. For the reasons stated in Plaintiff's Motion RFPs-Christina, the Court GRANTS IN PART Plaintiff's Motion RFPs-Whitehead No. 3-5. No. 3 is limited to job performance evaluations sought to June 29, 2024, to present. Nos. 4-5 are limited to similar complaints of harassment as alleged in the Complaint and from June 29, 2024, to present.

2.

Nos. 6-11

Whitehead's

responses, Plaintiff's reasons for further responses, and Whitehead's reasons why further responses are not warranted are the same as those asserted in Plaintiff's Motion RFPs-Christina. The Court incorporates the responses and arguments here.

The Court

GRANTS IN PART Plaintiff's Motion RFPs-Whitehead Nos. 6-11. The Court limits the scope of these requests to Plaintiff's complaints made after June 29, 2025.

In sum, the

Court GRANTS IN PART Plaintiff's Motion RFPs-Whitehead. No. 3 is limited to job performance evaluations sought to June 29, 2024, to present. Nos. 4-5 are limited to similar complaints of harassment as alleged in the Complaint and from June 29, 2024, to present. Nos. 6-11 are limited to Plaintiff's complaints made after June 29, 2025. Material responsive to these requests may be produced pursuant to the Protective Order ordered above.

C.

Plaintiff's Motion RFPs – Pacific is

Granted in Part.

1.

Nos. 3-6

All

communications and documents related to Plaintiff's complaint phone calls were being made to Plaintiff's phone number (323-533-0851) by Defendant Pacific.

This includes all aspects of the handling of said complaint, the discussions about said complaint, and any attempts to resolve said complaint. (See Sep. Stmt. Nos. 3-4.)

All communications

and documents related to Plaintiff's complaint that he was being harassed or

threatened by a person associated with Defendant Pacific or a person using

Defendant Pacific's phone number. (See *id.*, Nos. 5-6.)

The Court

incorporates Christina's responses to Nos. 6-9, Plaintiff's reasons for

compelling a further response, and Christina's responses for why further

response is not warranted as they are the same responses and arguments asserted

by Pacific and Plaintiff to these requests.

As the Court

found above, the Court finds further response is warranted to Nos. 3-6. Pacific

is amenable to responding to a more narrowly tailored request. The requests

clearly define "Plaintiff's ongoing complaint" as his complaints about receiving

phone calls, voicemails, or text messages from Pacific and Southern California

Edison and complaints about threats. The Court thus limits the temporal scope

of these requests to Plaintiff's complaints made after June 29, 2025.

The Court

GRANTS IN PART Plaintiff's Motion RFPs-Pacific Nos. 3-6. The Court limits the

scope of these requests to Plaintiff's complaints made after June 29, 2025.

2.

No. 7

"All

DOCUMENTS relating to the phone bills for the phone number associated with

Defendant Pacific, 424-312-5841 from January 1, 2022, thru January 31, 2026.

These phone bill DOCUMENTS would include the itemized records of outgoing

calls.” (Sep. Stmt. No. 7.)

The Court

incorporates Christina’s responses to No. 12, Plaintiff’s reasons for

compelling a further response, and Christina’s response for why further

response is not warranted as they are the same responses and arguments asserted

by Pacific and Plaintiff to No. 7.

As above, the

Court finds further response to No. 7 is warranted. Pacific is agreeing to

produce redacted phone bills. The Court limits the scope to phone bills from June

29, 2025 to present containing phone calls to Plaintiff’s phone number (323-533-0851)

as “This lawsuit only concerns these illegal contacts after the Settlement

Agreement was executed on June 29, 2025.” (SAC., at 4:8-9.)

The Court

GRANTS IN PART Plaintiff’s Motion RFPs-Pacific No. 7 limited to phone bills

from June 29, 2025, to present as to phone calls to Plaintiff’s phone number (323-533-0851).

In sum, the

Court GRANTS IN PART Plaintiff’s Motion RFPs-Pacific. Nos. 3-6 are limited to

Plaintiff's complaints made after June 29, 2025. No. 7 limited to phone bills

from June 29, 2025, to present as to phone calls to Plaintiff's phone number (323-533-0851).

D.

Plaintiff's Motion RFAs-Christina is

Granted in Part.

1.

Nos. 7-12

These

requests ask that Christina admit that Plaintiff's phone number, 323-533-0851,

was utilized in the call box/intercom in 2021 (No. 7), 2022 (No. 8), 2023 (No.

9), 2024 (No. 10), and 2025 (No. 11). (See Sep. Stmt. Nos. 7-11.)

"Admit that

Plaintiff Short's phone number of 323-533-0851 was deleted from the CALL

BOX/INTERCOM in 2025." (Id., No. 12.)

Christina "objects

to the word 'utilized' in this context as vague and ambiguous. This request

seeks information pertaining to events that occurred prior to June 2025, but

Plaintiff and Responding Party entered into a settlement agreement in which

Plaintiff released Responding Party from any liability for any purported claims

up to June 2025, rendering information sought from that time irrelevant,...Subject

to, and without waiving these objections: Responding Party lacks sufficient information or believe to either admit or deny this request at this time.

Responding Party will continue a reasonable inquiry to obtain further information regarding this request. Discovery and investigation continue.” (Id., Nos. 7-12 [No. 12 does not assert an objection to “utilized”].)

Plaintiff

argues these requests are relevant to his claims of receiving constant phone calls. (See id.)

Christina

argues its responses are complete and code compliant. (See Def.’s Sep. Stmt. Nos. 7-12.)

The Court

DENIES Plaintiff’s Motion RFAs-Christina as to Nos. 7-12 as it finds Christina’s responses are code compliant. (See Code Civ. Proc. § 2033.220(c).)

2.

Nos. 13-14

These requests

ask Christina admit it has been receiving emails from Southern California

Edison directed to or from

February 2022 thru January 2026. (See Sep. Stmt. Nos. 13-14.)

Christina

objects that the requests are overbroad and irrelevant in that they seek

information prior to the parties' settlement agreement releasing Christina from

liability for any claims up to June 2025. (See id.)

Plaintiff

argues these requests will confirm whether Christina knew Edison was contacting

Plaintiff. (See id.)

Christina

argues its response is code compliant and Plaintiff fails to explain why

admissions concerning alleged communications occurring before the parties' June

2025 Confidential Settlement Agreement and Release remain relevant to the

claims asserted in this action. (See Def.'s Sep. Stmt. Nos. 13-14.)

The Court

will grant the Motion as to Nos. 13-14 which the Court limits from June 29, 2025,

to present. From the SAC's allegation that this action "only concerns these

illegal contacts after the Settlement Agreement was executed on June 29, 2025"

and Christina points out it is not liable for any claims before the executed

settlement agreement, it appears the parties are in agreement as to what the

temporal scope of these requests should be. Thus, the Court limits these

requests to June 29, 2025, to present. (SAC, at 4:8-9.)

In sum, the

Court GRANTS IN PART Plaintiff's Motion RFAs-Christina Nos. 13-14, which the

Court limits from June 29, 2025, to present. The Motion is DENIED as to Nos.

7-12.

E.

Plaintiff's Motion RFAs-Whitehead is

Denied.

1.

Nos. 7-8

"Admit that

Plaintiff Short's phone number of 323-533-0851 was deleted from the CALL

BOX/INTERCOM in 2025." (Sep. Stmt. No. 7.)

"Admit

Plaintiff Short personally spoke to YOU, Defendant David Allen Whitehead, no

less than 10 times in 2020 and 2021 discussing how he (Plaintiff) did not

wasn't his name in the CALL BOX/INTERCOM at 6615 Pacific Ave. in Playa del Rey

90293." (Id., No. 8.)

Whitehead responds

"Responding Party further objects that this request may seek information

pertaining to events that occurred prior to June 2025, but Plaintiff and

Responding Party entered into a settlement agreement in which Plaintiff released Responding Party from any liability for any purported claims up to June 2025 ...Subject to, and without waiving these objections: Responding Party lacks sufficient information or believe to either admit or deny this request at this time. Responding Party will continue a reasonable inquiry to obtain further information regarding this request. Discovery and investigation continue."

Plaintiff

argues these requests seek to ascertain whether Whitehead removed Plaintiff's phone number. (See id., No. 7.) Plaintiff also contends request No. 8 will inform Whitehead's intent to leave Plaintiff's number in the call box to harass Plaintiff. (See id., No. 8.)

Whitehead

argues his responses are code compliant. (See Def.'s Sep. Stmt. Nos. 7-8.)

The Court DENIES

Plaintiff's Motion RFAs-Whitehead as to Nos. 7-8 because Whitehead's responses are code compliant. (See Code Civ. Proc. § 2033.220(c).)

F.

Plaintiff's Motion RFAs-Pacific is

Denied.

1.

Nos. 10-15

These

requests ask that Pacific admit whether Plaintiff's phone number, 323-533-0851,

was utilized in the call box/intercom in 2021 (No. 10), 2022 (No. 11), 2023

(No. 12), 2024 (No. 13), and 2025 (No. 14). (See Sep. Stmt. Nos. 10-14.)

"Admit that

Plaintiff Short's phone number of 323-533-0851 was deleted from the CALL

BOX/INTERCOM in 2025." (Id., No. 15.)

Pacific "objects

to the word "utilized" in this context as vague and ambiguous. This request

seeks information pertaining to events that occurred prior to June 2025, but

Plaintiff and Responding Party entered into a settlement agreement in which

Plaintiff released Responding Party from any liability for any purported claims

up to June 2025, rendering information sought from that time irrelevant...Subject

to, and without waiving these objections: Responding Party lacks sufficient

information or believe to either admit or deny this request at this time.

Responding Party will continue a reasonable inquiry to obtain further

information regarding this request. Discovery and investigation continue." (Id.,

Nos. 10-15 [No. 15 does not assert an objection to “utilized”].)

Plaintiff

argues these requests are relevant to his claims of receiving constant phone calls. (See *id.*)

Pacific

argues its responses are complete and code compliant. (See Def.’s Sep. Stmt. Nos. 10-15.)

The Court

DENIES Plaintiff’s Motion RFAs-Christina as to Nos. 10-15 as Christina’s responses are code compliant. (See Code Civ. Proc. § 2033.220(c).)

G.

Plaintiff’s Motion SROGs-Christina is

Granted in Part.

1.

No. 8

“Are the

phone bills for phone number 424-312-5841 addressed to CREI 4 – Pacific, LLC?”

(Sep. Stmt. No. 8.)

Christina

responds “Objection. Vague and ambiguous. Subject to, and without waiving these

objections: Responding Party is conducting a reasonable inquiry into the subject matter of this interrogatory and will provide a further response.

Discovery and investigation continue.” (Id.)

Plaintiff

argues phone bills from 424-312-5841 are central to this action Plaintiff needs to know what name corresponds to this phone number to subpoena the telephone carrier. (See id.)

Christina argues its response is proper. (See Def.’s Sep. Stmt. No. 8.)

The Court

finds further response to No. 8 is warranted as Christina’s response is not code compliant and the objections are meritless. (See Code Civ. Proc. §§ 2031.210(a), 2030.220.)

The Court

GRANTS Plaintiff’s Motion SROGs-Christina No. 8.

2.

Nos. 9-13

These

requests ask who is the person(s) currently responsible for the day-to-day operations of the apartment building at 6615 Pacific Ave. in Playa del Rey

90293 (No. 9) and who was responsible in 2025 (No. 10), 2024 (No. 11), 2023 (No. 12), and 2022 (No. 13). (See Sep. Stmt. Nos. 9-13.)

Christina

responds to No. 9, "Vague and ambiguous with respect to the phrase 'responsible for the day-to-day operations.' Overbroad. Not reasonably calculated to lead to the discovery of admissible evidence. Responding Party cannot respond to this interrogatory as drafted. Seeks information to harass responding party and its agents." (Id., No. 9.) Christina's responses to Nos. 10-13 add "Responding Party further objects that this interrogatory appears to seek information pertaining to events that occurred prior to June 2025, but Plaintiff and Responding Party entered into a settlement agreement in which Plaintiff released Responding Party from any liability for any purported claims up to June 2025, rendering information sought from that time irrelevant..." (Id., Nos. 10-13.)

Plaintiff

argues he wants to know who oversaw the apartment building during the year in question because that person would also be responsible for updating the call box, which is an issue central to this action. (See id., Nos. 10-13.)

Christina

argues the request assumes the person who manages the apartment building is

responsible for updating the callbox. It does not ask Defendant to identify the person responsible for maintaining, programming, or updating the call-box system. (See Def.'s Sep. Stmt. No. 9.) Christina argues its response is proper and Plaintiff does not define the phrase of the operational responsibility he seeks information. (See id., Nos. 10-13.)

Christina argues Plaintiff does not explain why information concerning pre-settlement conduct remains relevant. (See id.)

The Court

GRANTS Plaintiff's Motion SROGs-Christina to Nos. 9-10. Christina appears to understand that Plaintiff seeks to identify the person responsible for maintaining, programming, or updating the call-box system. Plaintiff's separate statement also clarifies the one "responsible for day to day operations" is the individual responsible for updating the call box at the specified address. Thus, both parties understand what the request seeks. Further, the SAC alleges this action is based on contacts after June 29, 2025, after the parties executed their settlement agreement. (See SAC, at 4:8-9.)

However, the

Court DENIES the Motion as to Nos. 11-13 because they seek information which precedes the settlement agreement.

///

3.

Nos. 14-15

These

requests ask when an e-mail is sent to or to

, what person or persons receives that e-mail? (See

Sep. Stmt. Nos. 14-15.)

Christina

responds "Objection. Vague and ambiguous. Irrelevant...Subject to, and without

waiving these objections: Responding Party is conducting a reasonable inquiry

into the subject matter of this interrogatory and will provide a further

response. Discovery and investigation continue." (Id.)

Plaintiff

contends Southern California Edison e-mails associated with the Edison calls,

texts, and voicemails Plaintiff continuously received were sent to Plaintiff's

old e-mail addresses. (See id.)

Christina

argues its objections are proper. Christina also argues Plaintiff does not

explain the relevance of the emails to his former email address to this action.

(See Def.'s Sep. Stmt. Nos. 14-15.)

This action is

based on Plaintiff receiving "calls, voicemails, and texts from PACIFIC and from Edison... after the Settlement Agreement was executed on June 29, 2025." (SAC, at 4:3-9.) Because emails to Plaintiff's old email addresses do not form the basis of this action, the Court agrees these requests are not relevant to this action. Thus, the Court DENIES Plaintiff's Motion SROGs-Christina Nos. 14-15.

In sum, the

Court GRANTS IN PART Plaintiff's Motion SROGs-Christina as to Nos. 8-10 but DENIES it as to Nos. 11-15.

H.

Motion SROGs-Whitehead

1.

No. 8

The Court

incorporates request No. 8, the response, and the parties' arguments from above as they are the same.

The Court

finds further response to No. 8 is warranted as Whitehead's response is not code compliant and the objections are meritless.

The Court

GRANTS Plaintiff's Motion SROGs-Whitehead No. 8.

2.

Nos. 9-13

The Court

incorporates request Nos. 9-13, the response, and the parties' arguments from above as they are the same.

The Court

GRANTS Plaintiff's Motion SROGs-Whitehead as to Nos. 9-10. Whitehead appears to understand Plaintiff seeks to identify the person responsible for maintaining, programming, or updating the call-box system. Plaintiff's separate statement also clarifies the one "responsible for day to day operations" is the individual responsible for updating the call box at the specified address.

Thus, both parties understand what the request seeks. Further, the SAC alleges this action is based on contacts after June 29, 2025, after the parties executed their settlement agreement. (See SAC, at 4:8-9.) However, the Court DENIES the Motion as to Nos. 11-13 because they precede the settlement agreement.

3.

Nos. 14-15

The Court

incorporates request Nos. 14-15 the response, and the parties' arguments from

above as they are the same.

This action

is based on Plaintiff receiving “calls, voicemails, and texts from PACIFIC and

from Edison... after the Settlement Agreement was executed on June 29, 2025.” (SAC, at

4:3-9.) Because emails to Plaintiff’s old email addresses are not what this

action is based upon, the Court agrees that these requests are not relevant to

this action. Thus, the Court DENIES Plaintiff’s Motion SROGs-Whitehead as to Nos.

14-15.

In sum, the

Court GRANTS IN PART Plaintiff’s Motion SROGs-Whitehead as to Nos. 8-10 and DENIES

it as to Nos. 11-15.

I.

Plaintiff’s Motion SROGs-Pacific is

Granted in Part.

1.

No. 11

The Court

incorporates request the previously discussed as SROG No. 8, the response, and

the parties’ arguments from above as they are the same as No. 11 here.

The Court

finds further response to No. 11 is warranted as Pacific's response is not code compliant and the objections are meritless.

The Court

GRANTS Plaintiff's Motion SROGs-Pacific No. 11.

2.

Nos. 12-16

The Court

incorporates request Nos. 9-13, the response, and the parties' arguments from above as they are the same.

In the

interest of judicial efficiency, the Court GRANTS Plaintiff's Motion

SROGs-Pacific Nos. 12-13. Pacific appears to understand that Plaintiff seeks to

identify the person responsible for maintaining, programming, or updating the

call-box system. Plaintiff's separate statement also clarifies that the one

"responsible for day to day operations" is the individual responsible for

updating the call box at the specified address. Thus, both parties understand

what the request seeks. Further, the SAC alleges this action is based on

contacts after June 29, 2025, after the parties executed their settlement

agreement. (See SAC, at 4:8-9.) Thus, the Court DENIES the Motion as to

Nos. 14-16 because they precede the settlement agreement.

In sum, the

Court GRANTS in part Plaintiff's Motion SROGs-Pacific Nos. 11-13 and DENIES it

as to Nos. 14-16.

VI.

DISCOVERY

SANCTIONS

The court

shall impose a monetary sanction under Chapter 7 (commencing with Section

2023.010) against any party, person, or attorney who unsuccessfully makes or

opposes a motion to compel further response to a demand, interrogatories, or

requests for admission, unless it finds that the one subject to the sanction

acted with substantial justification or that other circumstances make the

imposition of the sanction unjust. (See Code Civ. Proc. §§ 2031.310(h),

2030.300(d), 2033.290(c).)

With respect

to sanctions, pro se litigants may not recover attorney's fees as a discovery

sanction. (See *Kravitz v. Superior Court* (2001) 91 Cal.App.4th

1015, 1020.) However, pro se litigants may recover reasonable expenses actually

incurred, including computer-assisted legal research, photocopying,

transportation, or any other identifiable expense. (Id at 1022.)

Plaintiff

requests discovery sanctions in the amount of \$199.00 in connection with each discovery Motion.

This total is for a one-month subscription to a legal website that assisted

Plaintiff in preparing these Motions. (See e.g. RFPs-Christina Short

Decl., ¶ 2.)

Given the

breadth and scope of the discovery requests as well as the nature of the

privacy interests involved, the Court concludes Defendants' oppositions were

substantially justified and declines to award discovery sanctions.

VII.

CONCLUSION

Based on the

foregoing, the Court:

1.

GRANTS IN PART Plaintiff's Motion RFPs-Christina. No. 3 is limited to job

performance evaluations sought to June 29, 2024, to present. Nos. 4-5 are

limited to similar complaints of harassment as alleged in the Complaint and

from June 29, 2024, to present. The parties are ordered to execute and submit a

Stipulated Proposed Protective Order for the Court's approval by September 2,

2026. Christina may produce material responsive to these requests to the

Protective Order.

The Court

limits the scope of Nos. 6-11 to Plaintiff's complaints made after June 29,

2025. No. 12 is limited to phone bills from June 29, 2025, to present. In

addition, the bills shall be redacted so that only calls made to Plaintiff's

phone number (323-533-0851) shall be disclosed.

No. 13 is

limited to emails from June 29, 2025, to present.

2.

GRANTS IN PART Plaintiff's Motion RFPs-Whitehead as to Nos. 3-11. No. 3

is limited to job performance evaluations sought to June 29, 2024, to present.

Nos. 4-5 are limited to similar complaints of harassment as alleged in the

Complaint and from June 29, 2024, to present. Nos. 6-11 are limited to

Plaintiff's complaints made after June 29, 2025. Material responsive to these requests

may be produced pursuant to the Protective Order ordered above.

3.

GRANTS IN PART Plaintiff's Motion RFPs-Pacific as to Nos. 3-6, and 7. Nos.

3-6 are limited to Plaintiff's complaints made after June 29, 2025. No. 7 is limited

to phone bills from June 29, 2025, to present as to phone calls to Plaintiff's

phone number (323-533-0851).

4.

GRANTS IN PART Plaintiff's Motion RFAs-Christina as to Nos. 13-14 which the Court limits from June 29, 2025, to present. The Motion is DENIED as to Nos. 7-12.

5.

DENIES Plaintiff's Motion RFAs-Whitehead, Motion RFAs-Christina, and Motion RFAs-Pacific.

6.

GRANTS IN PART Plaintiff's Motion SROGs-Christina and Motion SROGs-Whitehead as to Nos. 8-10 and DENIES them as to Nos. 11-15.

7.

GRANTS IN PART Plaintiff's Motion SROGs-Pacific Nos. 11-13 and DENIES it as to Nos. 14-16.

The parties

are ordered to execute and submit a Stipulated Proposed Protective Order for the Court's approval by September 2, 2026.

Defendants

are ordered to provide further responses consistent with this Order by no later than September 18, 2026.

The Court

denies Plaintiff's request for discovery sanctions.

IT

IS SO ORDERED.

DATED: August 26, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.